

Group (2004) 121 Cal.App.4th 1225, 1222.) The test is whether there is an intent to benefit a third party that appears from the terms of the contract. (*Id.*) The intent must have been clearly manifested. (*Schauer v. Mandarin Gems of California, Inc.* (2005) 125 Cal.App.4th 949, 957-958.) Defendant is specifically identified as a third party beneficiary.

Plaintiff cites to *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 829-830, which states that a court looks at the express language of the contract and the circumstances under which the parties agreed to the contract, including whether the third party would in fact benefit from the contract, whether a motivating purpose of the contracting parties was to provide a benefit and whether permitting a third party to bring its own breach of contract action is consistent with the objectives of the contract and reasonable expectations of the contracting parties. However, there, the plaintiff was not expressly named as a party. Even assuming the *Goonewardene* factors apply, the arbitration agreement expressly identifies Defendant as a third party beneficiary, which Plaintiff agreed to by signing the lease. Here, Defendant benefits from the contract as it is entitled to enforce the arbitration agreement. The leases clear language indicates an express intention to identify Defendant as a third party beneficiary. It is consistent with the objectives of the contract as any other result would contradict the express terms of the contract.

Plaintiff relies on the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122. However, again, the manufacturers were never named as part of the sales contract. In contrast here, Defendant is expressly named as a third party beneficiary. Plaintiff then asserts that her claims do not arise out of the lease. However, the arbitration provision provides: “which arises out of or relates to a credit application, this lease *or any resulting transaction or relationship arising out of this lease.*” Plaintiff has alleged that “[i]n connection with the lease, Plaintiff received various warranties.” (Complaint ¶9.) Plaintiff’s relationship would not exist with Defendant without the lease, as Plaintiff leased the vehicle.

5.

CASE #	CASE NAME	HEARING NAME
CVME2504902	ANWAR VS SCUDDER	EX PARTE HEARING RE: OF SHARI R. SCUDDER AND SHELLEY E. MANGRAM TO ENFORCE PRELIMINARY INJUNCTION

Tentative Ruling: Hearing Required.

6.

CASE #	CASE NAME	HEARING NAME
CVME2504902	MILLER V YBARRA	APPLICATION FOR GOOD FAITH SETTLEMENT

Tentative Ruling: Application is granted. Here, Plaintiff submits the declaration of her counsel stating that the settling parties have agreed to the following material terms: